

HOUSE No. 523

The Commonwealth of Massachusetts

PRESENTED BY:

Antonio F. D. Cabral

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to achieve universal pre-kindergarten.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Antonio F. D. Cabral</i>	<i>13th Bristol</i>	<i>1/14/2025</i>
<i>Tram T. Nguyen</i>	<i>18th Essex</i>	<i>4/23/2025</i>

HOUSE No. 523

By Representative Cabral of New Bedford, a petition (accompanied by bill, House, No. 523) of Antonio F. D. Cabral for legislation to establish universal pre-kindergarten commission and dedicate funding for pre-kindergarten offerings. Education.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 436 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to achieve universal pre-kindergarten.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 An Act to achieve universal pre-kindergarten

2 Section 13 of chapter 15D of the General Laws, as appearing in the 2022 Official Edition,
3 is hereby amended by adding the following subsections: -

4 (e) The Universal Pre-Kindergarten Commission.

5 (1) Establishment of the Commission. There shall be a special commission for the
6 purpose of making an investigation and study relative to how to expand universal pre-
7 kindergarten to provide pre-kindergarten to every pre-kindergarten aged child in the
8 Commonwealth, which shall be known as the Universal Pre-Kindergarten Commission (in this
9 subsection referred to as the ‘commission’).

(2) Members. The commission shall be chaired by the commissioner of the department of early education and care or the commissioner's designee. The secretary of education or the secretary's designee and the commissioner of the department of elementary and secondary education or the commissioner's designee shall be members. The governor shall appoint 6 members, one of whom shall be nominated by Head Start Massachusetts, one of whom shall have experience operating a private preschool, one of whom shall be a member of a teachers' union or association, one of whom shall be nominated by the Massachusetts Association of School Superintendents, Inc. and one of whom shall be nominated by the Massachusetts Association of School Committees. The speaker of the house and the senate president shall each appoint one member.

(3) Report Recommending Legislation.

(i) Deadline. The commission shall report its findings and any legislation necessary to implement said findings to the governor, the clerks of the senate and house of representatives, the senate and house of representatives committees on ways and means, the joint committee on children, families, and persons with disabilities and the joint committee on education by December 31, 2026.

(ii) Contents of the Report. The commission report shall include an analysis of how to best expand quality pre-kindergarten offerings in Massachusetts such that every 3- and 4-year-old child would be able to attend; how to pay for expanding pre-kindergarten offerings; the appropriate ratio and combination of various types of pre-kindergarten programs to best serve children throughout the state; and the best way to promote high quality educational curriculum,

child development and safety standards. In making its recommendations the commission shall consider among other issues:

(A) the advantages and disadvantages including cost, parental preference and ease of expansion of pre-kindergarten as provided by Head Start, public schools, programs licensed or subsidized by the department of early education and care and private programs.

(B) the cost of expanding pre-kindergarten offerings according to the different program models that are available, for example Head Start, public schools, programs licensed or subsidized by the department of early education and care and private programs.

(C) the financial benefits of universal pre-kindergarten for education readiness and greater employment opportunities for parents.

(D) the possibility of including pre-kindergarten students when calculating the distribution of chapter 70 education funds.

(E) how to appropriately increase pre-kindergarten offerings over time while ensuring quality of care and safety; and

(F) the optimum way to expand participation in the Quality Rating Information System (or 'QRIS') or other curriculum standards programs adopted by Massachusetts, including providing grants or other financial incentives for participation.

(f) Universal Pre-Kindergarten Expansion Funding. Notwithstanding subsection (c) of section 10 of chapter 152 of the acts of 1997 or any other general or special law to the contrary, no later than June 30 of each year, that portion of the balance in the Convention Center Fund which the state treasurer has determined to exceed the amount necessary to satisfy the

52 requirement of sufficiency under said subsection (c) of said section 10 of said chapter 152, shall
53 be transferred to the department of early education and care to be used solely for the purpose of
54 expanding pre-kindergarten offerings.